

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ANTOINE JEFFREY,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER BALLAERA, Shield No. 95412, POLICE
OFFICER ADAM GESLAK, Tax No. 950488,
SERGEANT CHRISTINE STCLAIRE, Tax No. 950488,
SERGEANT RODRIGUEZ, Tax. No. 943458, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 10, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER CHRISTOPHER BALLAERA, Shield No. 95412

POLICE OFFICER ADAM GESLAK, Tax No. 950488, Transit District 33, 2399 Fulton St, Brooklyn, NY 11233

SERGEANT CHRISTINE STCLAIRE, Tax No. 950488, Transit District 33, 2399 Fulton St, Brooklyn, NY 11233

SERGEANT RODRIGUEZ, Tax. No. 943458, Transit District 33, 2399 Fulton St, Brooklyn, NY 11233

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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THE CITY OF NEW YORK, POLICE OFFICER
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OFFICER ADAM GESLAK, Tax No. 950488,
SERGEANT CHRISTINE STCLAIRE, Tax No. 950488,
SERGEANT RODRIGUEZ, Tax. No. 943458, and
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ANTOINE JEFFREY, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 10, 2014, at approximately 9:30 a.m., plaintiff Antoine Jeffrey, while lawfully present inside of the Broadway Junction Subway Station, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was assaulted, battered, and subjected to the use of excessive force by defendant Police Officer Christopher Ballaera when he pushed plaintiff down a 3-story escalator, causing plaintiff to fall to the ground and suffer severe physical injuries. The defendant officers falsely informed the District Attorney's Office that plaintiff assaulted police officers and resisted arrest in order to justify why plaintiff was injured by the defendants. Plaintiff was subjected to malicious abuse of process, malicious prosecution and denied the right to due process and a fair trial. All criminal charges brought against plaintiff were terminated in plaintiff's favor on or about July 13, 2016 when plaintiff was acquitted by a jury. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied plaintiff the right to due process and used excessive force against

plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ANTOINE JEFFREY is a resident of the state of New York.

3. POLICE OFFICER CHRISTOPHER BALLAERA, Shield No. 95412, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER CHRISTOPHER BALLAERA, Shield No. 95412, was at all times relevant herein, assigned to the Transit District 33 Precinct.

5. POLICE OFFICER CHRISTOPHER BALLAERA, Shield No. 95412, is being sued in his individual and official capacity.

6. POLICE OFFICER ADAM GESLAK, Tax No. 950488, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER ADAM GESLAK, Tax No. 950488, is and was at all times relevant herein, assigned to Transit District 33 Precinct.

8. POLICE OFFICER ADAM GESLAK, Tax No. 950488, is being sued in his individual and official capacity.

9. SERGEANT CHRISTINE STCLAIRE, Tax No. 950488, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT CHRISTINE STCLAIRE, Tax No. 950488, is and was at all times relevant herein, assigned to Transit District 33 Precinct.

11. SERGEANT CHRISTINE STCLAIRE, Tax No. 950488, is being sued in her individual and official capacity.

12. SERGEANT RODRIGUEZ, Tax. No. 943458, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT RODRIGUEZ, Tax. No. 943458, is and was at all times relevant herein, assigned to Transit District 33 Precinct.

14. SERGEANT RODRIGUEZ, Tax. No. 943458, is being sued in his individual and official capacity.

15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. On December 10, 2014, at approximately 9:30 a.m., plaintiff was lawfully inside of the Broadway Junction Subway Station, Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion, probable cause, or any legal justification.

24. By way of background, plaintiff was riding down a 3-story escalator located inside of the Broadway Junction Station, in order to transfer from the J train to the A train.

25. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

26. Suddenly, without provocation or legal justification, defendant Police Officer Christopher Ballaera pushed plaintiff down the escalator, causing plaintiff to fall down the 3-story escalator and onto the ground, causing severe pain to plaintiff.

27. After falling down the escalator and onto the ground, plaintiff began to attempt to stand up, but the defendant officers immediately grabbed plaintiff and slammed him back onto the ground.

28. At no time did plaintiff act in a physically threatening manner nor did the defendant officers have any objective factual basis to believe plaintiff was a physical threat to them.

29. At no time relevant herein did plaintiff assault the officers, nor did plaintiff resist arrest when the officers decided to arrest him.

30. Nevertheless, plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

31. Plaintiff was transported by the defendant police officers to the Transit 33 Precinct against his will, where he was photographed, fingerprinted, search, and placed in a holding cell.

32. The officers did not recover any illegal drugs, weapons or contraband from plaintiff or from his possession, custody, or control.

33. After several hours in custody, plaintiff was transported from the Transit 33 Precinct to Kings County Central Booking and placed in a holding cell.

34. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff interfered with an arrest and resisted arrest, which allegedly led them to believe that plaintiff committed a crime.

35. To avoid being disciplined for pushing plaintiff down the escalator and injuring plaintiff, the defendant officers needed to provide a valid explanation for how plaintiff was physically injured while in their custody. Therefore, for the purpose of justifying the force used by the officers against plaintiff, the officers falsely alleged that plaintiff assaulted the officers and resisted arrest, necessitating the use of force by the defendant officers in order to effectuate plaintiff's arrest. The defendant officers falsely arrested plaintiff in order to achieve their collateral objectives of avoiding discipline for injuring plaintiff and justifying how plaintiff was injured by the police officers.

36. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

37. On December 10, 2014 at approximately 9:00 p.m., after being unlawfully detained for approximately 12 hours, plaintiff was arraigned in Kings County Criminal Court and released on his own recognizance.

38. The officers maliciously and unlawfully charged plaintiff with Attempted Aggravated Assault upon a Police Officer, Assault in the Second Degree, Assault in the Third Degree, Reckless Endangerment in the Second Degree, and Resisting Arrest, without probable cause or legal justification.

39. Thereafter, plaintiff appeared in Criminal Court on at least fifteen occasions and was forced to stand trial.

40. On July 13, 2016, after a malicious prosecution lasting approximately 19 months, a jury acquitted plaintiff of all charges.

41. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, malicious prosecution, assault, battery, excessive force, denial of due process and the right to a fair trial, and abuse of process against plaintiff.

42. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, malicious prosecution, assault, battery, abuse of process, and excessive force of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to malicious abuse of process, and maliciously prosecuted plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

45. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search plaintiff.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

68. Defendants commenced and continued a criminal proceeding against plaintiff.

69. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

70. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

71. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants by pushing plaintiff down the escalator, slamming plaintiff to the ground, and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation

of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Antoine Jeffrey. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

81. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein

87. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

88. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

89. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

90. In withholding/creating false evidence against plaintiff Antoine Jeffrey, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

91. As a result of the foregoing, plaintiff Antoine Jeffrey, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Malicious Abuse of Process

95. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 94 with the same force and effect as if fully set forth herein.

96. Defendants issued legal process to place plaintiff Antoine Jeffrey under arrest.

97. Defendants arrested plaintiff Antoine Jeffrey in order to obtain a collateral objective outside the legitimate ends of the legal process.

98. Defendants acted with intent to do harm to plaintiff Antoine Jeffrey, without excuse or justification.

99. As a result of the foregoing, plaintiff Antoine Jeffrey sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

104. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Failure to Intervene

105. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 124 with the same force and effect as if more fully set forth at length herein.

106. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

107. Defendants failed to intervene to prevent the unlawful conduct described herein.

108. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

109. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

111. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

112. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

113. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Antoine Jeffrey demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 10, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER CHRISTOPHER BALLAERA, Shield No. 95412
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St, Brooklyn, NY 11233
SERGEANT RODRIGUEZ, Tax. No. 943458, Transit District 33, 2399 Fulton St,
Brooklyn, NY 11233

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 10, 2017

/s/
STUART E. JACOBS